

**BOARD OF ETHICS
OF THE CITY OF PHILADELPHIA**

J. Shane Creamer, Jr.	:	
Executive Director	:	
Board of Ethics	:	
of the City of Philadelphia	:	
1515 Arch Street, 18 th Floor	:	
Philadelphia, PA 19102	:	
	:	Matter No: 2510ET21
v.	:	
Otis Bullock	:	
	:	
	:	
<u>otisbullock@gpca-phila.org</u>	:	

BRIEFING ORDER

The Executive Director of the Board of Ethics served a Notice of Administrative Enforcement Proceeding (“Notice”) upon Otis Bullock, Respondent, on October 6, 2025 by email.¹ As explained in the Procedural Instructions issued on October 7, 2025, Respondent had twenty (20) days – or until October 27, 2025 – to respond to the Notice and request a hearing if desired. Board Regulation No. 2, Paragraph 2.14. As of the date of this Order, the Board of Ethics has not received a response from the Respondent. Paragraph 2.14(c) provides that “[a] respondent’s failure to respond in writing to the Notice by the deadline set forth in this Paragraph is a waiver of the right to a hearing.”²

¹ The Board of Ethics staff received email receipts confirming delivery of both the Notice of Administrative Enforcement Proceeding and the Procedural Instructions. The Staff sent the Notice and Procedural Instructions to the email address that was provided by the Administration as part of its annual list of City board and commission members and this email address was also previously used by Board staff to communicate with Respondent. This Briefing Order is being sent to this email address and also to the street address listed by Respondent on his 2025 Statement of Financial Interest.

² Paragraph 2.14(c) also provides that the Board may “grant an untimely request for a hearing if such request is made before the Board votes to approve its final determination...” No such request has been made to date. An untimely request for a hearing requires a showing of good cause for the failure to timely respond to the Notice or to request a hearing.

Where a respondent does not request a hearing, the Board may consider (1) undisputed allegations in the Notice /or (2) evidence submitted by the Executive Director in support of the Notice. Reg. 2, ¶ 2.20(b). The procedural supplement to Regulation No. 2 further provides that when a respondent does not request a hearing, the Executive Director may file a brief in support of the Notice no later than fourteen (14) days of the date that respondent's Response to the Notice was due. *Procedures for Admin. Enforcement Proceedings that Supplement Board Reg. No. 2* (June 19, 2019) at ¶5. The Executive Director may attach exhibits to their brief. *Id.*

Accordingly, it is **ORDERED** that:

1. The Executive Director may file a brief in support of the Notice of Administrative Enforcement Proceeding no later than **November 10, 2025**.
2. Respondent may file a brief in response to the Executive Director's brief within fourteen (14) days of service of the Executive Director's brief.
3. **Filing Procedure.** Briefs by the Executive Director and Respondent may be filed by email or by mail (USPS or commercial mail delivery service). Email filings must be sent to BOEGCStaff@phila.gov. Briefs that are emailed are required to be submitted as an attachment in PDF format (not in the text body of an email) and must be **received** by the Board of Ethics no later than the date on which they are due. Briefs that are filed by mail must be **received** by the Board of Ethics by the date on which they are due and must be addressed as follows:

City of Philadelphia Board of Ethics
Jordana Greenwald, General Counsel
1515 Arch Street, 18th floor
Philadelphia, PA 19102

4. **Format of Briefs.** Briefs shall be double-spaced in 12-point Times New Roman font. All pages (other than the cover page) of the brief shall be consecutively numbered.
 - a. **Proposed findings of fact.** The first section of the brief shall set forth proposed factual findings. Each proposed factual finding shall be presented in a separate numbered paragraph and shall be accompanied by specific citation(s) in support of the proposed finding.

- b. **Proposed conclusions of law.** The second section of the brief shall set forth proposed conclusions of law. Each proposed conclusion of law shall be presented in a separate numbered paragraph and shall be accompanied by citation(s) to the paragraphs containing the factual findings underlying the proposed legal conclusion. Each proposed conclusion of law shall also cite the specific statutory or regulatory provision that supports the proposed conclusion.
 - c. **Argument.** The final section of the brief shall contain concise arguments in support of the proposed findings of fact and conclusions of law. All assertions based on statutory or regulatory law, judicial decisions, or Board precedent shall be accompanied by specific citations. All references to facts shall be accompanied by citation to the relevant paragraph(s) in the proposed findings of fact or, if referring to a part of the record that is not included in the proposed findings of fact, by citation to corresponding exhibits.
 - d. **Certificate of Service.** The last page of the brief shall contain a certificate of service upon the opposing party.
5. **Exhibits.** All exhibits submitted with briefs must be clearly marked with a letter. If a document has multiple pages, each page must be marked with the exhibit letter and the page number. For example, if Exhibit A has three pages, it should be marked “A1” on the first page, “A2” on the second, and “A3” on the third. Briefs shall clearly cite all references to exhibits using the exhibit letter and page number.

If you have any questions about the above Order, please contact Senior Staff Attorney Tom Klemm at Thomas.Klemm@phila.gov (with copies to Jordana.Greenwald@phila.gov and Julia.Sheppard@phila.gov). This includes questions about deadlines, how to file documents, and general questions about how the administrative enforcement process works. If you do not have access to email, you may leave a message at 215-686-9450 and someone will follow up with you. Please remember this is only for procedural questions and not for questions or statements about the substance of the case.

Date: October 30, 2025

/s/ Louis S. Rulli, Esq.
Louis S. Rulli, Esq.
Hearing Officer